

SUPREME COURT OF THE STATE OF NEW YORK
RICHMOND COUNTY

-----X
ANGEL BONANO,

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD DETECTIVE
GREGORY SMITH (Shield # 00970), NYPD OFFICER
THOMAS GEOGHEGAN (Shield # 10569), NYPD
OFFICERS JOHN and JANE DOE #'s 1-11 (names and
numbers unknown at this time), and Other Unidentified
members of the New York City Police Department ("NYPD"),

Plaintiff Designates
Richmond County
as the place of trial

Defendants.
-----X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 14, 2024

Respectfully submitted,

/s/ Rachelle Kredentser

Rachelle Kredentser, Esq.
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD DETECTIVE GREGORY SMITH, (Shield # 00970), 120th Precinct, 78 Richmond Terrace,
St. George, NY, 10301-1905

NYPD OFFICER THOMAS GEOGHEGAN, (Shield # 10569), 120th Precinct, 78 Richmond Terrace,
St. George, NY, 10301-1905

SUPREME COURT OF THE STATE OF NEW YORK
RICHMOND COUNTY

-----X
ANGEL BONANO,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
GREGORY SMITH (Shield # 00970), NYPD OFFICER
THOMAS GEOGHEGAN (Shield # 10569),
NYPD OFFICERS JOHN and JANE DOE #'s 1-11
(names and numbers unknown at this time), and Other
Unidentified members of the New York City Police Department
("NYPD"),

Defendants.

-----X
Plaintiff **Angel Bonano**, hereinafter "Plaintiff," by his attorney, RACHELLE KREDENTSER, ESQ., as and for
the Complaint herein, alleges upon information and belief as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, assault, battery, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, malicious prosecution, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff

seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

II. PARTIES

2. Plaintiff is a resident of Richmond County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated Plaintiff's rights as described herein. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department ("NYPD").
4. Defendant NYPD Detective Gregory Smith, assigned Shield # 00970, is employed with NYPD's 120th Precinct, and was at all times relevant herein an officer, employee, and agent of the NYPD.
5. Defendant Smith is being sued in his individual and official capacity.
6. Defendant NYPD officer Thomas Geoghegan, assigned Shield # 10569, is employed with NYPD's 120th Precinct, and was at all times relevant herein an officer, employee, and agent of the NYPD.
7. Defendant Geoghegan is being sued in his individual capacity and official capacity.
8. Defendant John and Jane Doe #'s 1-11 are and were at all times relevant herein officers, employees, and agents of the NYPD. Defendant officers John and Jane Doe #'s 3-11 are being sued in his/her individual and official capacities.
9. At all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on

behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

10. In furtherance of his State causes of action, Plaintiff filed a timely Notice of Claim upon Defendant City of New York in compliance with Municipal Law Section 50.
11. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and Defendant City of New York has failed to pay or adjust the claim.
12. Defendant City of New York held a 50(h) hearing examination of Plaintiff on December 18, 2023.
13. Plaintiff demands a trial by jury.

III. STATEMENT OF FACTS

14. On February 18, 2023, at approximately 9 p.m., police officers entered a two-family house at 185 Broadway, Staten Island, New York.
15. The second floor of 185 Broadway, Staten Island, New York 10310 is Plaintiff's apartment.
16. Prior to the police arriving, Plaintiff's sister, Shacarra Garcia, came to visit Plaintiff at his apartment.
17. When Ms. Garcia arrived at Plaintiff's apartment, she had bruises on her body caused by her abusive romantic partner.
18. Ms. Garcia and Plaintiff had a verbal argument in his apartment about Ms. Garcia returning to her abusive partner.
19. During the verbal argument, Plaintiff's girlfriend, Milagros Lopez, attempted to move between Ms. Garcia and Plaintiff and tripped over a toy. Ms. Lopez became enraged that she had tripped over the toy.

20. Shortly thereafter, Plaintiff left the house and took a walk to avoid the escalating situation. He left the door unlocked to the front door of the private home. About twenty minutes later, Plaintiff returned home and saw two uniformed individual Defendant officers entering his two-family private house. Defendant officers were Defendant Smith, Defendant Geoghegan, and/or Defendants John and Jane Does 1-11.
21. Upon information and belief, these Defendants did not have consent from anyone inside the home to enter it.
22. Upon information and belief, Defendant officers were not in possession of a warrant at the time they entered the home.
23. Defendant officers entered the home without permission or authority.
24. Plaintiff walked into the building behind the Defendant officers and Plaintiff saw Defendant officers walking up the stairs to Plaintiff's apartment on the second floor.
25. Plaintiff followed Defendant officers up the stairs and asked what the problem was and if they had a warrant to enter the property. One Defendant officer prevented Plaintiff from walking further up the stairs. A Defendant officer stated that they had received a call about an alleged assault.
26. When Plaintiff attempted to walk past the Defendant officer, this officer roughly and tightly grabbed his arm, preventing Plaintiff from walking past him.
27. The moment Plaintiff encountered Defendant officers, he was not free to leave.
28. At some point, Ms. Lopez and Plaintiff's 15-year-old niece exited the apartment. Ms. Lopez informed Defendant officers she did not want to press charges.
29. At the time of Plaintiff's arrest, Ms. Lopez did not have any visible bodily injuries.
30. Plaintiff attempted to talk to Ms. Lopez and Defendant officers told him to "shut the fuck up."

31. At some point Ms. Lopez reentered the apartment. A Defendant officer followed her into the apartment. This Defendant officer entered the apartment without any permission or authority. An argument between Ms. Lopez and Defendant officers ensued.
32. A Defendant officer encouraged Plaintiff to let the officer in his apartment. This Defendant officer contradicted his own instructions as when Plaintiff tried to then go up the stairs towards the apartment, this Defendant officer prevented him from entering the apartment. Defendant officer pinned Plaintiff at this threshold.
33. Upon information and belief, additional Defendant officers, including Defendant Smith, Defendant Geoghegan, and/or Defendant John and Jane Does 1-11, arrived and passed Plaintiff in the threshold of Plaintiff's apartment and entered the apartment. Again, these Defendants did not have permission or authority to do so.
34. Ms. Lopez repeatedly told Defendant officers to leave, to leave Plaintiff alone, and that she was not pressing charges. She asked Defendant officers to stop being aggressive towards her and explained it was all a misunderstanding.
35. Upon information and belief, during this time, Defendant Smith and/or other Defendant officers grabbed Plaintiff by the arms.
36. Plaintiff continued to express how he felt the Defendant officers were mishandling the situation.
37. Shortly thereafter, Plaintiff was handcuffed. He did not resist arrest.
38. Plaintiff never hit or assaulted any officer.
39. Defendant officers, upon information and belief, including Defendant Smith and Defendant Geoghegan, pushed Plaintiff down the stairs, causing physical discomfort and fear.
40. Plaintiff was in custody for approximately 24 hours.
41. Defendant officers never supplied any food to Plaintiff.

42. Defendant Geoghegan, Defendant Smith, and/or other Defendant officers provided false information to the District Attorney that Plaintiff had assaulted Defendant Smith. Defendant officers knew this allegation to be false when they supplied this information.
43. Upon information and belief, unnamed and named individual Defendants withheld exculpatory information or provided false information to the District Attorney's office.
44. Plaintiff appeared before a Judge and was released on his own recognizance.
45. Plaintiff attended three subsequent court appearances.
46. All charges against Plaintiff were dismissed and sealed on April 14, 2023.
47. Plaintiff lost two days of pay as a concierge at a luxury building in Manhattan.
48. As a result of the arrest, Plaintiff now experiences ongoing mental trauma and fear, for which he visits a psychiatrist and therapist.

IV. CAUSES OF ACTION

A. STATE LAW CLAIMS

Count 1: FALSE ARREST AND FALSE IMPRISONMENT

49. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 48 as if fully set forth herein.
50. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants Smith, Geoghegan, and/or John and Jane Doe 1-11 intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

51. Individually named Defendants, as well as unnamed Defendants, were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York and the New York City Police Department, which are therefore responsible for their conduct.
52. Defendant City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 2: MALICIOUS PROSECUTION

53. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 48 with the same force and effect as if more fully set forth at length herein.
54. The acts and conduct of the individual Defendants constitute malicious prosecution under the laws of the State of New York.
55. Individual Defendants commenced and continued a criminal proceeding against Plaintiff.
56. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted, namely, that Plaintiff had assaulted an officer or resisted arrest.
57. The prosecution and criminal proceedings terminated favorably for Plaintiff on April 14, 2023.
58. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
59. The individual Defendants John and Jane Does 1-11, Defendant Smith, and Defendant Geoghegan, were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York and the New York City Police Department, which are therefore responsible for their conduct.

Count 3: NEGLIGENCE HIRING, RETENTION, TRAINING AND SUPERVISION

60. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 48 with the same force and effect as if more fully set forth at length herein.
61. Defendant City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

Count 4: FAILURE TO INTERVENE

62. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 48 with the same force and effect as if more fully set forth at length herein.
63. Defendants Smith, Geoghegan, and John and Jane Does 1-11 had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, unlawful search and seizure, detention, and malicious prosecution.
64. Defendants Smith, Geoghegan, and/or John and Jane Does 1-11 failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
65. As a result of the foregoing, Plaintiff was subjected to illegal search and undue force upon his person over the course of his false arrest.
66. Individual Defendants were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York, the New York City Police Department, which are therefore responsible for their conduct.
67. Defendant City, as the employer of individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 5: NEGLIGENCE

68. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 48 with the same force and effect as if more fully set forth at length herein.
69. Defendants owed a duty of care to Plaintiff.
70. Defendants Smith, Geoghegan, and/or John and Jane Does 1-11 breached that duty of care by subjecting him to unjustified illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
71. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
72. All of the foregoing occurred without any fault by Plaintiff.
73. Defendant City, as the employer of the Defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 6: INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

74. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 48 with the same force and effect as if more fully set forth at length herein.
75. By the actions described herein, the individually named and unnamed Defendant officers, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
76. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.

77. Defendant City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 7: ASSAULT

78. New York provides a tort claim against government employees for assault.
79. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 2 through 48 with the same force and effect as if more fully set forth herein.
80. Individual Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact when they detained, arrested, and held Plaintiff, and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff.
81. Individual Defendants, Defendant Smith, Defendant Geoghegan, and/or John and Jane Does 1-11, menaced such offensive contact including, but not limited to, when Defendant officers grabbed Plaintiff's arms, pushed Plaintiff down the stairs, and handcuffed Plaintiff.
82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York, via the New York City Police Department, which are therefore responsible for their conduct.
83. Defendant City, as the employer of individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 8: BATTERY

84. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 48 with the same force and effect as if more fully set forth herein. [1]
[SEP]

85. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to Plaintiff and caused such battery. This act was committed without justification, and was committed by Defendant Officers, Defendant Smith, Defendant Geoghegan, and/or Defendant John Does, prior to Plaintiff's false and illegal arrest.
86. Such acts included, but are not limited to, Defendant officers pushing Plaintiff down the stairs, grabbing his arms, and handcuffing him.
87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
88. The City, as the employer of Defendants is responsible for their wrongdoing under the doctrine of *respondeat superior*.

B. FEDERAL CLAIMS

89. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
90. All of the aforementioned acts of Defendant Smith, Defendant Geoghegan, and Defendant Officers, their agents, servants, and employees, were carried out under the color of state law.
91. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

92. The acts complained of were carried out by the Defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
93. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
94. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

Count 9: VIOLATION OF FOURTH AMENDMENT FALSE ARREST UNDER 42 U.S.C. § 1983

95. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
96. As a result of the aforesaid conduct by Defendant Smith, Defendant Geoghegan, and/or Defendant Officers, Plaintiff was subjected to an illegal, improper, and false arrest by such Defendants, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
97. Defendants did not have probable cause to arrest Plaintiff.
98. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

Count 10: VIOLATION OF THE FOURTH AMENDMENT UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

99. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

100. Plaintiff was searched by individual Defendants without an individualized reasonable suspicion that Plaintiff had committed any crime.
101. As a result of the aforesaid conduct by individual Defendants, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
102. Specifically, individual Defendants entered Plaintiff's home without permission or authority. Individual Defendants arrested Plaintiff for plainly false allegations that Plaintiff assaulted an officer.
103. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

Count 11: DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

104. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
105. Defendant Smith, Defendant Geoghegan, and Defendant officers created false evidence against the plaintiff, alleging that he committed the crime of Obstruction of Justice and Resisting Arrest.
106. Defendant Smith, Defendant Geoghegan, and Defendant officers forwarded false evidence and false information to prosecutors in the Richmond County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff resisted being handcuffed, and made threatening statements.
107. Defendant Smith, Defendant Geoghegan, and Defendant officers misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

108. In creating false evidence against Plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, Defendant Smith, Defendant Geoghegan, and Defendant officers violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
109. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**Count 12: VIOLATION OF THE FIRST AMENDMENT RIGHT TO FREEDOM OF SPEECH
UNDER 42 U.S.C. § 1983**

110. Plaintiff realleges and incorporates by reference as if fully set forth herein the allegations in all preceding paragraphs.
111. The First Amendment to the United States Constitution prohibits abridgement of the freedom of speech. The First Amendment is incorporated against the States by the Fourteenth Amendment. Persons violating the First Amendment under color of state law are liable at law and in equity under 42 U.S.C. § 1983.
112. Plaintiff's protected speech included his communications with Ms. Lopez and expressing his dissatisfaction with Defendant officers mishandling of the situation.
113. Individual Defendants' actions, including but not limited to acting aggressively towards Plaintiff and only placing Plaintiff under arrest after Plaintiff made constitutionally protected speech, unconstitutionally deprived Plaintiff as Plaintiff faced the imminent threat of being assaulted again or being cited while engaging in constitutionally protected speech and his speech was chilled.

Count 13: FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

114. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
115. Defendant Smith, Defendant Geoghegan, and Defendant officers had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
116. Defendant Smith, Defendant Geoghegan, and Defendant officers further violated Plaintiff's constitutional rights when they failed to intervene and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
117. As a result of the Defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

Count 14: MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

118. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
119. Defendant Smith and Defendant officers misrepresented and falsified evidence before the Richmond County District Attorney, including false allegations that Plaintiff committed Obstruction of Justice and Resisting Arrest.
120. Defendant officers Smith and Geoghegan, and/or Defendant officers, did not make a complete and full statement of facts to the District Attorney.

121. Defendants Smith, Geoghegan, and/or Defendant officers withheld exculpatory evidence from the District Attorney.
122. Defendant Smith, Defendant Geoghegan, and/or and Defendant officers were directly and actively involved in the initiation of criminal proceedings against plaintiff.
123. Defendant officers, including but not limited to Defendant Smith and Defendant Geoghegan, and lacked probable cause to initiate criminal proceedings against plaintiff.
124. Defendant Smith, Defendant Geoghegan, and/or Defendant officers acted with malice in initiating criminal proceedings against plaintiff.
125. Defendant Smith, Defendant Geoghegan, and/or other Defendant officers were directly and actively involved in the continuation of criminal proceedings against plaintiff.
126. Defendant officers lacked probable cause to continue criminal proceedings against plaintiff.
127. Defendant Smith, Defendant Geoghegan, and/or other Defendant officers acted with malice in continuing criminal proceedings against plaintiff.
128. Defendant Smith, Defendant Geoghegan, and/or other Defendant officers misrepresented and falsified evidence throughout all phases of the criminal proceedings.
129. Specifically, Defendant Smith, Defendant Geoghegan, and/or other Defendant officers made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
130. Notwithstanding the perjurious and fraudulent conduct of Defendant Smith, Defendant Geoghegan, and/or other Defendant officers, the criminal proceedings were terminated in Plaintiff's favor on April 14, 2023.

131. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

Count 15: MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

132. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
133. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
134. The aforementioned customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. failing to intervene when officers are unlawfully detaining and arresting individuals without probable cause; and,
 - E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and

F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

135. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

136. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

137. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.

138. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.

139. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.

140. The acts complained of deprived the Plaintiff of their right:

G. Not to be deprived of liberty without due process of law;

H. To be free from seizure and arrest not based upon probable cause;

I. To exercise freedom of speech and to not have that freedom abridged nor chilled; and

J. Not to have summary punishment imposed upon them.

WHEREFORE, ANGEL BONANO, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law. Specifically, Plaintiff requests the Court

- A. declare that Defendants violated Plaintiffs rights under the First, Fourth, Fifth, Sixth and Fourteenth Amendments;
- B. declare that preventing peaceful speech violates the First Amendment;
- C. award compensatory and punitive damages for the violation of their constitutional rights;
- D. award punitive and compensatory damages for tortious claims;
- E. award plaintiffs costs and a reasonable attorney's fee pursuant to 42 U.S.C. § 1988; and
- F. grant or award other such relief as this Court deems just and proper.

Dated: New York, New York
May 14, 2024

Respectfully submitted:
By: s/ *Rachelle Kredentser*
Rachelle Kredentser, Esq.
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TO:
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD DETECTIVE GREGORY SMITH, (Shield # 00970), 120th Precinct, 78 Richmond Terrace,
St. George, NY, 10301-1905

NYPD OFFICER THOMAS GEOGHEGAN, (Shield # 10569), 120th Precinct, 78 Richmond Terrace,
St. George, NY, 10301-1905

ATTORNEY'S VERIFICATION

I, **RACHELLE KREDENTSER**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **BROWNSTEIN LEGAL, P.C.**, I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files.

DATED: New York, New York
May 14, 2024

/s/ Rachelle Kredentser
Rachelle Kredentser, Esq.